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CASE #	CASE NAME	HEARING NAME
CVPS2400165	LEAUPEPE VS GOLDENVOICE, LLC, A LIMITED LIABILITY COMPANY	MOTION TO COMPEL SECOND SESSION OF THE DEPOSITION OF TRAVIS STRAWBRIDGE, PERSON MOST KNOWLEDGEABLE FOR DEFENDANT STAFF PRO, INC, DOCUMENT PRODUCTION, AND REQUEST FOR SANCTIONS BY JESSE T. LEAUPEPE

Tentative Ruling: Plaintiff moves the Court for an order compelling Defendant Safe Pro to produce its PMK for a second deposition to answer questions he improperly refused to answer at the instruction of counsel. Plaintiff's motion is based on Code of Civil Procedure section 2025.480, subdivision (a), which provides that "If a deponent fails to answer question or to produce any document ... under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc., §2025.480(a).) "If a deponent fails to answer any question or to produce any document ... that is specified in the deposition notice ..., the party seeking that answer or production may [1] adjourn the deposition or [2] complete the examination on the matter without waving the right at a later time to move for an order compelling that answer or production under Section 2025.480." (Code Civ. Proc., §2025.460(e).) The motion must be made no later than 60 days after the completion of the record of the deposition. (Code Civ. Proc., §2025.480(b).) Here, Plaintiff completed the examination and has brought the instant motion within 60 days after the deposition.

Plaintiff contends that Strawbridge improperly refused to answer deposition questions which were within the scope of the noticed PMK categories. Plaintiff contends Staff Pro failed to produce certain documents requested in the deposition notice, which Plaintiff describes as (1) Goldenvoice staffing change orders and job order updates and (2) post orders that provide written instruction to security personnel regarding their duties and protocols. As Staff Pro correctly points out in its opposition, Plaintiff's motion was filed without a Separate Statement setting forth the questions and corresponding responses in dispute. (Cal. Rules of Court, rule 3.1345(a)&(c).) Nevertheless, in support of the motion, Plaintiff produced the excerpts from the PMK's deposition transcript, in which the at-issue questions and the corresponding responses were highlighted and readily available. (Smith Decl., ¶ 5, Ex. D.) For that reason, the Court exercises its discretion to proceed to rule on the merits of the motion. (See *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, fn. 14 ["the court rule requiring a separate statement on a motion to compel ... does not limit a trial court's discretion to compel further answers notwithstanding the absence of a separate statement"].)

To each of the questions, Safe Pro's counsel, upon asserting objections, explicitly instructed Strawbridge not to answer. Irrespective of whether the objections raised by Plaintiff's counsel were justified, the deponent must still answer, and counsel's coaching of the deponent not to answer question should not be allowed. "A party is entitled to take the testimony of his opponent before trial for the purpose of discovery." (*Meyer v. Cooper* (1965) 233 Cal.App.2d 750, 753.) The deposition questions may relate to "any matter, not privileged, that is relevant to the subject matter ... if the matter either is itself admissible

in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010, emphasis added; *See Kalaba v. Gray* (2002) 95 Cal.App.4th 1416, 1423 1015 [“deposition questions are intended to elicit information reasonably calculated to lead to discovery of admissible evidence”].) Secondary authority suggests that “[a]n attorney may instruct a client not to answer only when necessary to preserve a privilege or to present a motion to limit the deposition on grounds of bad faith, oppression; otherwise objections on any other grounds should be noted on the record, but the examination still proceeds subject to any objection.” (Thomas, Cal. Civ. Ctrm. Hbook. & Desktop Ref. (2022 ed.) Discovery, § 21:77.) Therefore, the deponent is only permitted to refuse to answer a deposition question upon asserting an objection based on the attorney-client privilege, which was not the case here. (*See Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1014-1015, citing former Code Civ. Proc., § 2025(m) [held “deponents not ... prevented by counsel from answering a question unless it pertains to privileged matters or deposing counsel’s conduct has reached a stage where suspension is warranted”].) Safe Pro argues that Strawbridge has sufficiently addressed the unanswered questions in a declaration. A declaration, however, does not cure the improper refusal to answer during deposition as Plaintiff was foreclosed from asking follow-up questions related to the same matters.

The motion is moot as to the requested production of documents. As Plaintiff concedes, the post orders were already produced by Safe Pro, which were forwarded to Plaintiff’s counsel. Plaintiff may ask questions as to the post orders at the resumption of deposition, however, Safe Pro’s obligation to produce the document has been satisfied. As to the change orders, Plaintiff presents no evidence to show Strawbridge testified as to their existence. Although Plaintiff refers to the location of the deposition transcript where the testimony can be found, the excerpts provided by Plaintiff did not include those pages. Rather, the portion of the transcript presented by Safe Pro shows that Strawbridge testified having no knowledge of any change orders from Goldenvoice, which confirms the documents’ nonexistence.

The court “shall” impose a monetary sanction against the losing party unless it finds the losing party “acted with substantial justification” or other circumstances make imposition of the sanction “unjust.” (Code Civ. Proc., §§2025.450(g)(1), 2025.480(j).)

Motion to Compel Second Session of the Deposition of Travis Strawbridge, Person Most Knowledgeable for Defendant Staff Pro, Inc, and Document Production GRANTED in PART.

Staff Pro, Inc. to produce Travis Strawbridge for a second deposition to answer the twenty questions he was instructed not to answer, as well as questions related to the post orders.

Motion to Compel Document Production is MOOT.

Sanctions awarded in the amount of \$2400 (6 hours at \$400/hr).

Trial Setting Conference confirmed for 10.15.26.